



A subsidiary of AFM Holding Limited

FUNKYSOUQ FINANCIAL & PAYMENT AGREEMENT

THIS IRREVOCABLE FINANCIAL AGREEMENT ("Agreement") is a **legally binding and non-negotiable contract** entered into by and between:

AFM E-Shop FZ LLC, a UAE-licensed limited liability company headquartered in Dubai and operating under the trade name **FunkySouq**, herein referred to as "**FunkySouq**", and

The Salwa Ahmed Ali Ahmed, any legal or natural entity entering into a commercial agreement with FunkySouq to sell fashion-related products on its marketplace platform, herein referred to as the "**Vendor**".

(Collectively referred to as the "**Parties**")

1. Purpose

This Agreement outlines the absolute and non-negotiable financial structure, obligations, revenue-sharing policies, and platform monetization terms between FunkySouq and the Vendor. The terms defined herein are enforceable under UAE commercial and financial laws.

2. Strict Payment Routing Policy

- Under no circumstances shall FunkySouq transfer any Vendor earnings to **personal, proxy, or unregistered bank accounts**.
- All payments will be made **exclusively to the verified and licensed bank account** of the Vendor's registered business.
- Any violation or request to bypass this clause shall result in **immediate suspension of account, termination of agreement, blacklisting, and legal action** in compliance with UAE Anti-Money Laundering (AML) regulations.

3. Commission and Fee Structure

- FunkySouq shall deduct a **fixed 25% platform commission** from the final selling price on each order successfully delivered.
- The remaining 75% shall be considered **Vendor earnings** and eligible for disbursement only after return windows have closed.
- This commission is **non-refundable, non-disputable**, and remains payable regardless of Vendor's profit margins or promotional pricing.

4. Payment Cycle & Return Handling

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- Payments to Vendors shall be disbursed **only after a mandatory 10-working-day period post-confirmed delivery**, and **not earlier**.
- An end-user **return window of 7 working days** shall be observed, followed by a **3-working-day verification hold**.
- Total clearance cycle = **10 working days after delivery**, contingent on zero pending returns.
- All disbursements shall be routed via **Network International**, FunkySouq's exclusive payment settlement gateway.

5. Platform Access & Subscription Fees

- FunkySouq shall charge a **mandatory access fee of AED 99/month** for the first three months from the onboarding date.
- Post initial term, FunkySouq reserves **full unilateral right** to amend, revise, or restructure platform fees.
- Vendors shall be notified **at least 45 calendar days in advance** of any such changes.
- Vendors may either **accept revised terms or exit the platform** by providing a **written 30-day cancellation notice**.
- Failure to respond within notice period shall constitute **automatic agreement to new terms**.

6. Fulfillment & Storage Fees

- Vendors opting to utilize FunkySouq's fulfillment infrastructure shall be charged **AED 199/month per 2m x 2m** of reserved storage area.
- Additional storage beyond allocated space will incur **pro-rata charges**.
- All stored goods must be declared, cataloged, and labeled as per FunkySouq's warehousing policy.
- FunkySouq reserves the right to **dispose or seize unclaimed or unpaid storage goods after 30 days** of non-compliance.

7. Marketing Services & Paid Promotions

- Vendors may opt-in to premium promotional services offered by FunkySouq, including:
 - **Featured Product Placements**
 - **Sponsored Listings**
 - **Homepage and Banner Visibility**

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- **Flash Deal Campaigns**
- **Seasonal Highlights & Influencer Spots**
- These services shall be priced **strictly based on product category, timing, placement priority, and duration**.
- All fees must be **paid upfront**, and are **non-refundable** once a campaign goes live.
- Non-payment or default will result in **blacklisting from all promotional slots** and temporary marketplace suspension.

8. AML, KYC & UAE Regulatory Compliance

- FunkySouq enforces stringent compliance with all **UAE Anti-Money Laundering (AML) and Know Your Customer (KYC)** regulations.
- Vendor must provide valid **trade license, bank letter, Emirates ID (if applicable), and VAT documentation** during onboarding.
- FunkySouq holds the right to:
 - **Freeze payouts** pending document or transaction clarification
 - **Report suspicious activities** to Central Bank authorities and relevant AML task forces
 - **Suspend or terminate vendor access without notice** for regulatory violations

9. Governing Law & Jurisdiction

- This Agreement shall be interpreted and enforced in accordance with **UAE Federal Law and Dubai Commercial Court jurisdiction**.
- Any dispute shall first undergo **mandatory mediation** in Dubai.
- If unresolved, both Parties irrevocably consent to litigation in the courts of **Dubai, UAE**.

10. Final Clauses & Enforcement

- This Agreement shall be read in conjunction with the previously signed **Vendor Onboarding Agreement**.
- All clauses herein are **final, non-editable, and enforceable by UAE law**.
- FunkySouq reserves the right to update terms **with written notification**.



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- Vendor's continued use of the platform post-amendment constitutes **legal and commercial acceptance**.

IN WITNESS WHEREOF, the Parties hereby execute this binding Agreement on the date(s) below:

For FunkySouq (AFM E-Shop FZ LLC)

Signature: _____

Name: _____

Title: _____

Date: _____

For The Salwa Ahmed Ali Ahmed

Signature: _____

Name: _____

Company: _____

Date: _____